

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/05/09/2022.

Date: 20th September 2022.

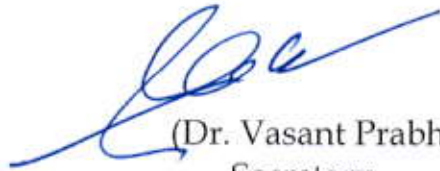
To,
The Collector, Mumbai Suburban,
Office of Collector,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College,
Bandra (East), Mumbai-400 051

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000000522 filed by **Anshumaan SainyaBhosle Vs. Vidhi Relators** in Project No. P51800007949.

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,



(Dr. Vasant Prabhu)

Secretary
MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/05/09/2022.

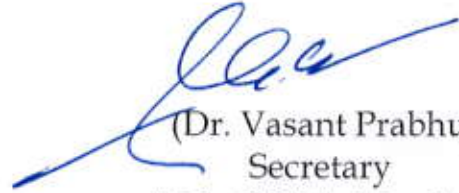
Date: 20th September 2022.

1.	Name and address of the firm: -	Anshumaan SainyaBhosle 104, Swajan, Behind Pratap Society, Model Town, Andheri West, Next to Versova Metro Station, Mumbai - 400053. Mobile No.- +91- 9820002211 Email ID: - Anshsb2@yahoo.com
2.	The sum to be recovered.	Refund of amount of Rs. 18,39,833.50/- including the principal amount of Rs. 13,27,436/- along with the interest calculated till 19/07/2022 at 9.30% pa. along with further applicable interest till full refund of the amount to the complainant.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000000522 Final Order dated: 12 th February 2018
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Vidhi Relators. PAN No.- AAFV4222J 76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kapol Bank, Mumbai - 400067. Mr. Ketan Tokershi Shah

		(Authorized Signatory) 701, Hemlok CHS Ltd., Kilachand Road, Near Shoperstop, Kandivali West, Mumbai - 400067. Details of Contact Person: - Jinam Shah - Legal Mobile No.- +91- 9833509427 Email ID: - rg_rera@ravigroup.in
6.	Full details of the property of defaulter against which the process may be executed.	The flat bearing no. 1101, G Wing, in the Project known as "Gaurav Discovery" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 2841 pt at Borivali - 400097. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800007949. b) Other apartments which are still not booked and not mortgaged to any Financial Institutions /Bank. Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./ II No. of the property	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of

	f) Area of the property in square meters g) CTS No. of the property area of the property.	defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC – namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai
Date: 20th September 2022


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/05/09/2022.

Date: 20th September 2022.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000000522

Project No: P51800007949

Anshumaan SainyaBhosle

--- Complainants.

Versus

Vidhi Relators

--- Respondent.

To,
The Collector, Mumbai Suburban,
Office of Collector,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College,
Bandra (East), Mumbai-400 051

Whereas the above-named complainant has filed the above complaint No. CC006000000000522, and the Authority/Adjudicating Officer passed the enclosed order wherein the complaint was disposed of in view of the consent terms filed by the parties.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Anshumaan SainyaBhosle

104, Swajan, Behind Pratap Society, Model Town, Andheri West, Next to Versova Metro Station, Mumbai - 400053.

Mobile No.- +91- 9820002211

Email ID: - Anshsb2@yahoo.com

2) Name of respondents/promoters/directors/partners with their addresses:

Vidhi Relators.

PAN No.- AAFFV4222J

76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kapol Bank, Mumbai - 400067.

Mr. Ketan Tokershi Shah - (Authorized Signatory)

701, Hemlok CHS Ltd., Kilachand Road, Near Shoperstop, Kandivali West, Mumbai - 400067.

Details of Contact Person: - Jinam Shah - Legal

Mobile No.- +91- 9833509427

Email ID: - rg_rera@ravigroup.in

3. Name of the project & its location:

The flat bearing no. 1101, G Wing, in the Project known as "Gaurav Discovery" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 2841 pt at Borivali - 400097

- a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800007949.

- b) Other apartments which are still not booked and not mortgaged to any Financial Institutions/ Bank.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/ Banks should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

- a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

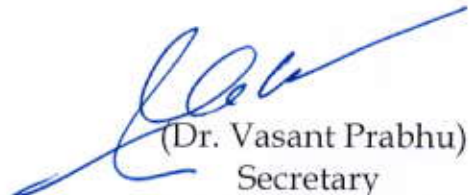
5) Amount to be refunded:

Refund of amount of Rs. 18,39,833.50/- including the principal amount of Rs. 13,27,436/- along with the interest calculated till 19/07/2022 at 9.30% pa. along with further applicable interest till full refund of the amount to the complainant.

6) Enclosures:

- i) Final order dated. 12th February 2018.
- ii) Order of Non-compliance dated 19th July 2022.
- iii) Interest calculation submitted by the complainants by email.

Mumbai
Date: 20th September 2022


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATIONS**

In

COMPLAINT NO: CC006000000000522

Anshumaan Surendra SainyaBhosle Complainant

Versus

Vidhi Realtors Respondent

Along With

COMPLAINT NO: CC006000000000947

Suresh Krishna Warier Complainant

Versus

Vidhi Realtors Respondent

Along With

COMPLAINT NO: CC0060000000055649

Sujata Prashant Pujare Complainant

Versus

Vidhi Realtors Respondent

MahaRERA Registration No. P51800007949

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Shreejit Singh appeared for the complainant.

None appeared for the respondent.

Order

19th July 2022

(Through Video Conferencing)

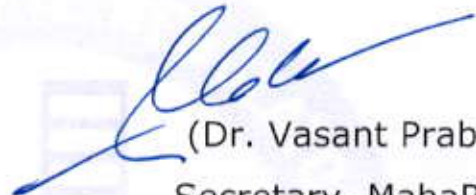
1. The Complainants have filed these present 3 separate applications for non-compliance of the MahaRERA Orders issued on various dated in Complaint nos.: CC006000000000522, CC006000000000947 and CC0060000000055649 (hereinafter

referred to as the said complaints), by the Respondent.

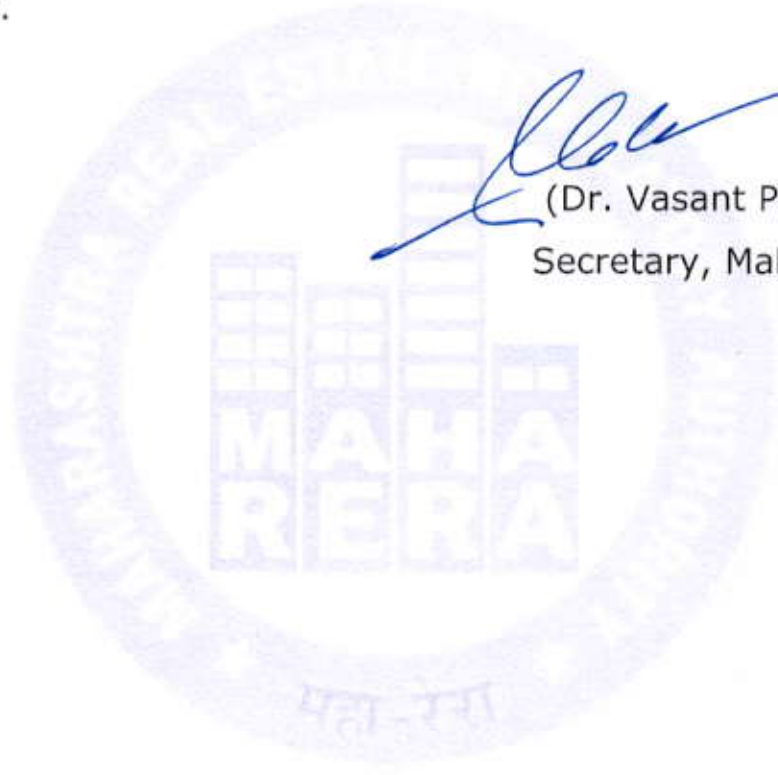
2. In the said complaints filed by the complainants, the parties had settled the matters amicably in view of the consent terms filed by the parties.
3. On the said non-compliance applications, the hearing was held today through video conferencing as per MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainants submitted that, the matters were settled amicably between the parties and consent terms were also filed. As per the said consent terms, the respondent was to cancel the allotment of the flats and refund the complainants' amounts to them as per the consent terms. The respondent has however, failed to refund the entire amount to date. The respondent has also failed to appear for the hearings. The complainants therefore sought action against the respondent under section 40(1) of RERA.
5. The respondent did not appear for the hearing even though the notice of hearing was duly served upon it. Hence the complainants are entitled to seek issuance of warrant under section 40(1) of RERA.
6. From the above, it is clear that the respondent has failed to comply with the orders and refund the complainants' amounts along as per the consent terms. Any further time granted to the respondent would lead to injustice to the complainants.
7. Therefore, as per the request of the complainants, the MahaRERA

has no alternative but to proceed with action under section 40 (1) of RERA against the respondent. It is therefore directed to issue individual recovery warrants under section 40(1) of RERA read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, against the booked flats in the said project of the respondent.

8. In view of the above, the application of non-compliance stands disposed of.



(Dr. Vasant Prabhu)
Secretary, MahaRERA



PAYMENT DETAILS & INTEREST DUE FOR COMPLAINT NO : CC0060000000000522

Installment No	Installment Amount (Rs.)	Received	Amount Received (Rs.)	Date Of Receipt	Remarks	Pending Amount (Rs.)
1	₹ 4,31,859.00	Yes	₹ 4,31,859.00	09-04-2018	-	₹ -
2	₹ 4,31,859.00	No	₹ 1,00,000.00	08-03-2019	1st sub-installment received	₹ 31,859.00
			₹ 1,00,000.00	30-05-2019	2nd sub-installment received	
			₹ 1,00,000.00	12-07-2019	3rd sub-installment received	
			₹ 50,000.00	03-08-2019	4th sub-installment received	
3	₹ 4,31,859.00	No				₹ 4,31,859.00
4	₹ 4,31,859.00	No				₹ 4,31,859.00
5	₹ 4,31,859.00	No				₹ 4,31,859.00
GT	₹ 21,59,295.00				GT	₹ 13,27,436.00

(A)

Interest calculation						
Period		No of Days	Interest calculation		Interest Per day	Total Interest
From	To		Principal Amount	Rate of Interest		
01-04-2018	19-07-2022	1,570.00	₹ 31,859.00	9.30%	8.11	₹ 12,732.70
01-05-2018	19-07-2022	1,540.00	₹ 4,31,859.00	9.30%	110.35	₹ 1,69,939.00
01-06-2018	19-07-2022	1,509.00	₹ 4,31,859.00	9.30%	110.35	₹ 1,66,518.15
01-07-2018	19-07-2022	1,479.00	₹ 4,31,859.00	9.30%	110.35	₹ 1,63,207.65
					Interest payable	₹ 5,12,397.50

(B)

Total outstanding payment (including interest) - A+B	₹ 18,39,833.50
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BEFORE THE
MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI

COMPLAINT NO: CC006000000000522

MR. ANSHUMAAN SAINYA BHOSLE ... Complainant.

Versus

VIDHI REALTORS ... Respondent.

MahaRERA Regn: P51800007949

Coram: Shri B.D. Kapadnis,

Hon'ble Member & Adjudicating Officer.

FINAL ORDER

12th February 2018

The parties have filed Consent Terms marked *Exhibit - 'B'* and therefore the complainant has filed *purshis* marked *Exhibit - 'A'* to contend that he withdraws the complaint. Hence, the following order

Order

The Complaint stands disposed off as withdrawn. The Consent Terms marked *Exhibit - 'B'* shall form the part of the Order.

Mumbai.
Date: 12.02.2018


12.2.18
(B.D. Kapadnis)
Member & Adjudicating Officer,
MahaRERA, Mumbai.

BEFORE THE

MAHARASHTRA REAL ESTATE REGULATORY

AUTHORITY MUMBAI

COMPLAINT NO. CC006000000000522 OF 2017

ANSHUMAAN SAINYA BHOSLE

... Complainant

V/s.

M/S. VIDHI REALTORS

..... Respondent

CONSENT TERMS

The parties herein have amicably settled all disputes and differences between them in respect of the premises being Flat No.1101, Flat No. 1101 on 11th floor, G-wing, area admeasuring 376 sq. ft. Carpet area in project Know as "GAURAV DISCOVERY" ("Building") on the following terms :-

- 1) Agreed, declared and confirmed that the Complainant had agreed to purchase the subject flat under an Agreement for Sale 28th December, 2013 duly registered before the Sub-Registrar Borivali- 5 Sr. No. BRL-5/1186/2014 ("Agreement") for the consideration of a sum of Rs. 63,55,840/- (Rupees Sixty Three Lakhs Fifty Five Thousand Eight Hundred and Forty Only) and out of the total consideration, the Complainant have paid a part consideration sum of Rs. 14,49,360 /- (Rupees Fourteen Lakhs Forty Nine Thousand Three Hundred and Sixty Only) towards installment+ Service Tax Rs. 45,238/- + VAT Rs. 63,558/- + TDS Rs. 5000/- + Stamp Duty Rs. 3,18,000/- + Registration Fees Rs. 30,000/- Total amounting to Rs. 19,11,156/- (Rupees Nineteen Lakhs Eleven Thousand One Hundred and Fifty Six) to the Respondent.

R R R
Parties advised
the contents
by
2.12/18

- 2) The parties had agreed to cancel and terminated the said Agreement for Sale 28th December, 2013 duly registered before the Sub-Registrar Borivali- 5 Sr. No. BRL-5/1186/2014 of the subject Flat by executing Deed of Cancellation, only after receiving the settlement amount as mentioned herein below..
- 3) Agreed, declared and confirmed that in the wake of the Complainants terminating and cancelling the Agreement for Sale of subject Flat and by way of full and final settlement of Complainant's claim in respect of the subject Flat, the Respondent have agree to pay the consideration amount Rs. 14,49,360 /- (Rupees Fourteen Lakhs Forty Nine Thousand Three Hundred and Sixty Only) + Rs.5,96,137/- (Rupees Five Lakhs Ninety Six Thousand One Hundred and Thirty Seven Only) as and by way of interest/ Compensation only on principal amount i.e. 1st installment, Total aggregate amount Rs.19,64,713/-(Rupees Nineteen Lakh Sixty Four Thousand Seven Hundred and Thirteen Only) to the Complaints. The Respondent also agreed to help in process of getting refund the Stamp Duty amount Rs. 3,18,000/- to the Complainant. The respondent also agree to refund Rs. 45,238/- (Service Tax), Rs. 63,558/- (VAT), Rs. 5,000/- (TDS).
- 4) Agreed, declared and confirmed that Respondent shall pay the above mentioned sum of Rs.21,59,293/-(Rupees Twenty One Lakhs Fifty Nine Thousand Two Hundred and Ninety Three Only) hereinafter referred to as "SETTLEMENT AMOUNT" to the Complainants on or before 29th June, 2018 in Five installments by RTGS/NEFT as follows:-
 - i) A sum of Rs.4,31,859/- (Rupees Four Lakhs Thirty One Thousand Eight Hundred and Fifty Nine Only) i.e.20% of total amount on or before 28thFebruary 2018;
 - ii) A sum of Rs. 4,31,859/- (Rupees Four Lakhs Thirty One Thousand Eight Hundred and Fifty Nine Only)

i.e.20% of total amount on or before 31st March 2018;

iii) A sum of Rs. 4,31,859/- (Rupees Four Lakhs Thirty One Thousand Eight Hundred and Fifty Nine Only)
i.e.20% of total amount on or before 30th April 2018;

iv) A sum of Rs. 4,31,859/- (Rupees Four Lakhs Thirty One Thousand Eight Hundred and Fifty Nine Only)
i.e.20% of total amount on or before 31st May 2018;

v) A sum of Rs. 4,31,859/- (Rupees Four Lakhs Thirty One Thousand Eight Hundred and Fifty Nine Only)
i.e.20% of total amount on or before 29th June 2018;

vi) The Complainant have provided their A/C Details as follows:

Bank Name: ICICI Bank

A/C Name:- Anshumaan Sainya Bhosle

Account No. 001101538197

IFSC Code: ICIC0000001

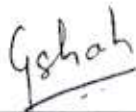
MICR: 400229003

- 5) Agreed, declared and confirmed by the parties that simultaneously upon receipt of settlement amount by RTGS/NEFT, Respondents and Complainant will execute the Deed of Cancellation within 5 days from the date of receiving the Full and Final payments as mentioned above and Complainant will appear before the Registration Authority to execute the same and thereafter the Complainant have no subsisting right, title, interest or claim in respect of the subject Flat and that the Respondent is absolutely and exclusively entitled to deal with and/or create third party rights in respect of the subject Flat and receive consideration in that regard.

- 6) Agreed, declared and confirmed by the Parties that Total expenses with respect to Deed of Cancellation will be borne by Respondents only.
- 7) The terms and conditions in the present Consent Terms are and shall always be binding on the Legal heir/s, representative/s, assignee/s, executor/s or any person/s claiming through and/or on behalf of the Complainant and Respondent.
- 8) The Complainant hereby withdraw all allegations and counter allegation and claims or demand and hereby declare that Complainant have no dispute and/or demand against the Respondent save and except as provided in forgoing paragraphs any time in future.

The Complaint be dispose off as withdrawn.

Dated this 12th day of February, 2018



M/S. VIDHI REALTORS
(Respondent)



Anshumaan Sainya Bhosle
(Complainant)

BEFORE THE MAHARASHTRA REAL
ESTATE REGULATORY AUTHORITY
MUMBAI
COMPLAINT NO. CC006000000000522/17

ANSHUMAAN Sainya BHOSLE
... Complainant

V/s.

M/S. VIDHI REALTORS
... Respondent

CONSENT TERMS

Dated this 12th day of February, 2018

**THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI.**

COMPLAINT NO: CC006000000000522

Anshumaan Sainya Bhosle

---Complainant.

Versus

Vidhi Realtors
(Gaurav Discovery)

---Respondents.

MahaRERA Regn: P51800007949.

Coram: Shri B.D. Kapadnis,
Hon'ble Member II.

ORDER ON THE RECOVERY APPLICATION FILED IN COMPLAINT.

The complainant has filed the execution petition as the respondents have failed to comply with the order passed in his complaint.

2. The respondents have sought the adjournments from time to time for making payments but it appears that the complainant's claim has not been satisfied.
3. Issue warrant against the respondents under Section 40(1) of RERA for the amount which is unpaid.
4. Complainant to file his statement of payment.

Mumbai.
Date:06.01.2020



6.1.2020
(B.D. Kapadnis)
Member II
MahaRERA, Mumbai.